

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3795

By: Adams

AS INTRODUCED

An Act relating to minor medical records; defining terms; mandating parents have access to their child's medical records; providing an exception; providing statutory exceptions; directing for administrative requirements; prohibiting a fee; providing for enforcement; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2002.1 of Title 25, unless there is created a duplication in numbering, reads as follows:

A. As used in this act:

1. "Electronic patient portal" means any online system, application, or platform used to access medical records or health care information;

2. "Health care provider" means any physician, hospital, facility, or other entity that creates or maintains medical records;

3. "Minor child" means any individual under eighteen (18) years of age, unless emancipated by law; and

1 4. "Parent" means the natural, adoptive, or legal guardian of a
2 minor child.

3 B. Except as provided in subsection G of this section, a parent
4 shall have full access to all medical records of his or her minor
5 child, including but not limited to, laboratory results, imaging,
6 prescriptions, diagnoses, clinical notes, after-visit summaries, and
7 billing information, whether provided in paper form or through an
8 electronic patient portal.

9 C. A health care provider or insurer shall not require or
10 encourage a minor child to create an independent electronic patient
11 portal account separate from the parent.

12 D. A parent shall be granted full read-only or read-write
13 portal access, equivalent to the access that would be granted to the
14 patient, until the minor child reaches eighteen (18) years of age,
15 unless otherwise exempted pursuant to subsection G of this section.

16 E. If the provider uses a system that automatically restricts
17 parental access at a certain age, the provider shall override the
18 system to maintain parental access consistent with this section.

19 F. A provider may create a separate login for the minor child
20 only if the parent:

- 21 1. Authorizes the creation in writing; and
- 22 2. Retains full administrative access to the account.

23 G. This subsection does not require disclosure of records that
24 relate solely to:

1 1. Minor-consent services expressly authorized under Oklahoma
2 Statutes, including:

- 3 a. testing or treatment for sexually transmitted
- 4 infections,
- 5 b. substance-abuse treatment, or
- 6 c. pregnancy-related care,

7 when provided under an existing statutory minor-consent exception;

8 2. Records where disclosure is prohibited by a court order; or

9 3. Records where disclosure would pose a substantial and
10 identifiable risk of harm to the minor child, and the provider
11 documents such finding in writing and makes it available to the
12 parent upon request.

13 H. A health care provider shall provide access to the parent
14 within five (5) business days of a request.

15 I. A denial of access shall be provided in writing and shall
16 cite the specific statutory exception pursuant to subsection G of
17 this section.

18 J. A provider shall not rely on general policy statements,
19 federal template settings, or internal software rules as grounds for
20 denial.

21 K. A provider shall not charge a fee to the parent for enabling
22 or maintaining portal access.

23 L. Failure to comply with this section shall be considered:
24

1 1. An unfair or deceptive act or practice under the Oklahoma
2 Consumer Protection Act; and

3 2. A reportable violation to the appropriate professional
4 licensing board.

5 SECTION 2. This act shall become effective November 1, 2026.

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